

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Andrew Ridge	Team: Squad #08	CCRB Case #: 201702934	☐ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/11/2017 8:40 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/11/2018	Precinct: 107
Date/Time CV Reported Tue, 04/11/2017 9:59 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/17/2017 11:00 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Genesis Batista	21902	962243	PSA 9

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Ehmer	20661	926797	PSA 9
2. POM Erik Cavanagh	20123	958386	PSA 9

Officer(s)	Allegation	Investigator Recommendation
A . POF Genesis Batista	Off. Language: Police Officer Genesis Batista made remarks to § 87(2)(b) based upon ethnicity.	A . Unsubstantiated

Summary of Complaint

On April 11th, 2017, at approximately 8:40AM, § 87(2)(b) was in her apartment which is § 87(2)(b) in Queens, when she realized that one of her dresses was missing. § 87(2)(b) has a longstanding conflict with one of her neighbors, § 87(2)(b) whom § 87(2)(b) believes has been stealing things from her apartment. § 87(2)(b) believed § 87(2)(b) stole the dress, and as a result, called 911. Police Officer Genesis Batista, Police Officer John Ehmer, and Police Officer Erik Cavanagh, all of the Police Service Area 9, arrived on scene in response to § 87(2)(b)'s call. The three MOS encountered § 87(2)(b) on the stairs of the building, during which time PO Ehmer told § 87(2)(b) to stop yelling. As they were leaving, PO Batista allegedly called § 87(2)(b) a “gorilla (Allegation A).”

Mediation, Civil, and Criminal Histories

- This case was suitable for mediation and it was offered to § 87(2)(b) during her initial phone statement and during her in-person interview at the CCRB (BR 01). In both instances, § 87(2)(b) rejected mediation.
- The NYC Office of the Comptroller responded to a request on May 31st, 2017, indicating that no notice of claim has been filed by § 87(2)(b) in regards to this incident (BR 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the second complaint filed by § 87(2)(b) at the CCRB (BR04). § 87(2)(b)
§ 87(2)(b)
- PO Batista has been a MOS for seven months, and this is the first CCRB complaint filed against her (BR05).

Findings and Recommendations

Allegation A—Offensive Language: Police Officer Genesis Batista made remarks to § 87(2)(b) based upon ethnicity.

During her in-person interview at the CCRB, § 87(2)(b) who is a black female, § 87(2)(g) § 87(2)(b) testified that on April 11th, 2017, sometime between 8:00AM and 10:00AM, she was in her apartment, which is § 87(2)(b) in Queens when she realized that one of her dresses was missing. § 87(2)(b) has had consistent issues with neighbors stealing items from her apartment, and believed that one of her neighbors, § 87(2)(b) must have stolen the dress because she has a key to § 87(2)(b)'s apartment.

As soon as she realized that her dress had been stolen, § 87(2)(b) called 911. After approximately 12 minutes of waiting for the police to arrive, § 87(2)(b) became impatient, and left the building to go to a store across the street from her building to buy a cup of coffee. As she was on her way back to her apartment building from the store, § 87(2)(b) began to yell because she was so angry at § 87(2)(b) for causing her so much trouble. When she was yelling, § 87(2)(b) was saying “I’m gonna fuck you up,” “I’m

gonna kick your ass,” and “You’re gonna get it.” § 87(2)(b) was not yelling at anyone in particular, as § 87(2)(b) was not present for the incident. § 87(2)(b) was yelling in order to let her frustration out.

As she was yelling, § 87(2)(b) observed PO Batista, PO Ehmer, and PO Cavanagh standing on the top of her apartment building. § 87(2)(b) went into the apartment building, and began to go up the stairs. In the stairwell between the second and third floors of the building, § 87(2)(b) encountered PO Batista, PO Ehmer, and PO Cavanagh. Although § 87(2)(b) wanted to file a criminal complaint against § 87(2)(b), she did not say anything to the three MOS initially. As the three MOS passed by § 87(2)(b) on the stairs, § 87(2)(b) heard that they were laughing at her. When § 87(2)(b) reached the third floor, she saw that the three MOS were on the second floor. § 87(2)(b) used a loud voice to ask the three MOS why they were not going to do anything and how they would feel if they were robbed. PO Ehmer, whom § 87(2)(b) had interacted with in the past and whom she believed a grudge against her, told § 87(2)(b) that he could never be robbed, and continued to laugh as he, PO Batista, and PO Cavanagh went down the stairs. No other MOS besides PO Ehmer said anything else while they were inside the apartment building. § 87(2)(b) described her demeanor as “frantic” at this point because she had wanted the three MOS to take a statement from her regarding the theft of her dress.

Outside of § 87(2)(b)’s apartment building, there is a pathway that goes directly to the front of the building that one can take as a shortcut to a nearby street instead of going all the way around the block. Once the three MOS reached the end of this pathway, § 87(2)(b) heard PO Batista say the word “gorilla.” When § 87(2)(b) heard PO Batista say “gorilla,” § 87(2)(b) was still standing on the third floor of the building. Although § 87(2)(b) did not hear in what context the word “gorilla” was used, and did not know if PO Batista was saying “gorilla” to her or the other two MOS, § 87(2)(b) believed that PO Batista was calling her a “gorilla” in reference to her race. No one else was present for this incident.

In his testimony at the CCRB, PO Ehmer testified that on the incident date, at approximately 8:54AM, he was on sector patrol with PO Cavanagh and PO Batista when they received a call for a dispute at § 87(2)(b) (BR06). When PO Ehmer arrived on scene, all three MOS went into the apartment building and to § 87(2)(b). After knocking on the door of § 87(2)(b) and receiving no response, the three MOS decided to conduct a vertical patrol since they were already in the NYCHA building, and so that they could see if there was any sign of a dispute in the building. Before conducting the vertical patrol, PO Ehmer and the two other MOS briefly spoke with a woman from § 87(2)(b) who stated that § 87(2)(b) is always yelling and cursing.

The three MOS reached the roof of the building, at which time PO Ehmer observed § 87(2)(b) approaching the building. PO Ehmer recognized § 87(2)(b) from past interactions with her. § 87(2)(b) often calls the police over disputes with neighbors. On this occasion, PO Ehmer could hear that as § 87(2)(b) was approaching the building, she was yelling and cursing. PO Ehmer could not specifically hear what § 87(2)(b) was yelling about. As PO Ehmer and the other two MOS made their way down the stairs of the building, they encountered § 87(2)(b) on the landing of the second floor. § 87(2)(b) was still yelling and cursing. PO Ehmer told § 87(2)(b) not to yell in the hallway. § 87(2)(b) told PO Ehmer that she did not give a fuck, and that she would come and yell at PO Ehmer’s house. PO Ehmer told § 87(2)(b) that she would not come and yell at his house. At this time, § 87(2)(b) continued to ascend the stairs, while the three MOS continued down the stairs.

As the three MOS were leaving the building, PO Ehmer could hear § 87(2)(b) yelling out after them. PO Ehmer could not hear what § 87(2)(b) was yelling. The three MOS did not say anything to each other as they left the building. At no point during the incident did § 87(2)(b) mention a robbery or that she wished to file a criminal complaint. PO Ehmer believed that PO Batista did not speak with § 87(2)(b) at any point during the incident. PO Batista did not use the word “gorilla” at any point throughout the course of the incident, nor did PO Ehmer or PO Cavanagh. No one else was present for this incident.

§ 87(2)(g)
§ 87(2)(b). PO Batista testified that throughout the course of the incident, § 87(2)(b) did not appear to be yelling and cursing in anyone in particular, but appeared to be arguing with someone although there was no one with her. PO Batista could not remember what in particular § 87(2)(b) was saying. PO

Batista and the other MOS with her at no point used the word “gorilla,” nor did any of the three MOS ever make any comment about § 87(2)(b) s race. § 87(2)(b) at no point complained of someone calling her a “gorilla,” or making comments about her race.

Patrol Guide 203-10: Public Contact-Prohibited Conduct, states that members of service are forbidden from “using discourteous or disrespectful remarks regarding another person’s ethnicity, race religion, gender, gender identity/expression, sexual orientation or disability (BR09).”

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad: 8

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date